



Notification Waiver Determination

MAG South Coast – Country Motor Company and Kinghorn Motors

Acquisition	McCarroll's of Moss Vale Pty Ltd (MMV) applied for a notification waiver in respect of its proposed acquisition of: 2 separate and independently owned motor vehicle dealership businesses, Country Motor Company Pty Ltd (Country Motor Company) and Kinghorn Motors Pty Ltd (Kinghorn Motors) (together, the Targets), via a special purpose vehicle, MAG South Coast Pty Ltd (MAG South Coast), and - the land on which the Country Motor Company and Kinghorn Motors businesses are operated, via McCarroll Property Holdings Pty Ltd, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	14 May 2026

Parties to the Acquisition	The acquirer, MMV, is a new and used vehicle retail business operating 15 franchised dealerships across locations in the Sydney, North Shore, Hornsby, and Newcastle areas of New South Wales (NSW). It is the authorised dealer of 15 original equipment manufacturer (OEM) brands. It also supplies ancillary services including parts, servicing, and finance. The Targets, Country Motor Company and Kinghorn Motors, are independently owned and operated, franchised dealerships located in the Nowra region on the South Coast of NSW which supply new and used cars, aftermarket parts, car servicing, and finance. Country Motor Company operates three dealerships (representing Hyundai, Isuzu, and GWM), and Kinghorn Motors operates two dealerships (representing Ford and Volkswagen).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, including the parties' revenues in Australia, the ACCC considers that, if the Acquisition were put into effect, the notification thresholds would be met.

	The ACCC is unable to reach a view that the Acquisition, which involves multiple independently operated dealerships, would not be likely to raise competition issues in any market based on the information provided. In particular: a. the Acquisition would combine the separately owned second- and third- largest independent dealerships and reduce the number dealerships of new and used cars in the Nowra region of NSW b. the merged entity's combined share of supply of new and used cars in the Nowra region of NSW may be significant c. there is uncertainty regarding the extent to which the merged entity would be likely to face intra-brand and inter-brand competition from alternative dealerships in the Nowra region, the surrounding areas, or in NSW more broadly. The ACCC considers that the Acquisition warrants consideration through the notification process, including via consultation with third parties. Given the above, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act